

COMMITTEE ON TRANSPORTATION & INFRASTRUCTURE
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1624
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Title 28, chapter 5, article 3, Arizona Revised
3 Statutes, is amended by adding section 28-1562, to read:

4 28-1562. Photo enforcement violations; excessive speed;
5 violation; classification; definition

6 [A. IF A PERSON IS FOUND RESPONSIBLE FOR AN EXCESSIVE SPEED
7 VIOLATION PURSUANT TO SECTION 28-701.02 THAT RESULTS FROM A PHOTO
8 ENFORCEMENT SYSTEM, THE PERSON IS GUILTY OF A CLASS 3 MISDEMEANOR.

9 B. A PERSON WHO IS CHARGED WITH A VIOLATION OF THIS SECTION MAY NOT
10 BE ISSUED A CIVIL COMPLAINT FOR A VIOLATION OF SECTION 28-1602 IF THE
11 CIVIL COMPLAINT ALLEGES A VIOLATION ARISING OUT OF THE SAME CIRCUMSTANCES.
12 C. FOR THE PURPOSES OF THIS SECTION, "PHOTO ENFORCEMENT SYSTEM" HAS
13 THE SAME MEANING PRESCRIBED IN SECTION 28-601.]>>

14 Sec. 2. Section 28-1602, Arizona Revised Statutes, is amended to
15 read:

16 28-1602. Photo enforcement violations; law enforcement
17 review; violation; classification; service of
18 process; no duty to identify photo or respond;
19 civil penalty; definitions

20 A. Notwithstanding any other law, if a person receives a notice of
21 violation in the mail for a violation of chapter 3, article 3 or 6 of this
22 title or of a city or town ordinance for excessive speed or failure to
23 obey a traffic control device that is obtained using a photo enforcement
24 system, the person does not have to do either of the following:

25 1. Identify who is in the photo.

26 2. Respond to the notice of violation.

27 B. The notice of violation must state the following:

1 1. The notice OF VIOLATION is not a court issued document and the
2 recipient is under no obligation to identify the person or respond to the
3 notice OF VIOLATION.

4 2. Failure to respond to the notice OF VIOLATION may result in
5 official service that may result in an additional fee being levied.

6 C. Before a citation is issued, a law enforcement agency must
7 review evidence that is recorded by a photo enforcement system to
8 determine whether a violation of chapter 3, article 3 or 6 of this title
9 or of a city or town ordinance for excessive speed or failure to obey a
10 traffic control device occurred.

11 D. A photo enforcement company may not determine whether a
12 violation of chapter 3, article 3 or 6 of this title occurred for the
13 purpose of ~~the issuance of~~ ISSUING a citation. A violation of this
14 subsection is a class 1 misdemeanor.

15 E. In addition to any other means authorized by the Arizona rules
16 of civil procedure, alternative service of process must be sent by
17 certified mail with an additional copy by regular mail and a notice must
18 be posted on the front door of the business or residence and, if present
19 and accessible, a residence's garage door. Service of the complaint is
20 complete on filing the mailing receipt and proof of posting in the court
21 having jurisdiction of the violation. Notwithstanding any other law, a
22 person's driving privileges may not be suspended or revoked as a result of
23 a citation that is served by alternative service of process under this
24 subsection.

25 F. If a law enforcement agency issues a citation as a result of a
26 photo enforcement system and serves the citation in a manner other than
27 what is prescribed by section 28-1593, subsection A, the agency shall
28 inform the person that there is no obligation to identify the driver or
29 respond to the citation. Failure to respond to the citation will result
30 in the probability that the person will be formally served pursuant to
31 state law and the Arizona rules of civil procedure which will likely
32 result in the person being required to pay the cost of the service.

33 G. IF A PERSON IS FOUND RESPONSIBLE FOR A CIVIL TRAFFIC VIOLATION
34 THAT RESULTS FROM A PHOTO ENFORCEMENT SYSTEM:

35 1. THE PERSON IS SUBJECT TO A CIVIL PENALTY OF NOT MORE THAN \$75.
36 [\$15 OF THE CIVIL PENALTY COLLECTED SHALL BE DEPOSITED IN THE PEACE
37 OFFICER TRAINING EQUIPMENT FUND ESTABLISHED BY SECTION 41-1731.]

38 2. A DEPARTMENT OR AGENCY OF THIS STATE MAY NOT CONSIDER THE
39 VIOLATION FOR THE PURPOSE OF DETERMINING WHETHER THE PERSON'S DRIVER
40 LICENSE SHOULD BE SUSPENDED OR REVOKED.

41 3. A COURT MAY NOT TRANSMIT ABSTRACTS OF RECORDS OF THE VIOLATION
42 TO THE DEPARTMENT.

43 4. AN INSURER MAY NOT CONSIDER THE VIOLATION AS A TRAFFIC VIOLATION
44 AGAINST THE PERSON FOR THE PURPOSES OF ESTABLISHING RATES FOR MOTOR
45 VEHICLE LIABILITY INSURANCE OR DETERMINING THE INSURABILITY OF THE PERSON.
46 AN INSURER MAY NOT CANCEL OR REFUSE TO RENEW ANY POLICY OF INSURANCE
47 BECAUSE OF THE VIOLATION.

1 ~~H.~~ H. For the purposes of this section:

2 1. "Notice of violation" means a notice issued by a photo
3 enforcement company or municipality that is not a uniform traffic ticket
4 and complaint.

5 2. "Photo enforcement system" has the same meaning prescribed in
6 section 28-601.

7 <<Sec. 3. Section 41-1731, Arizona Revised Statutes, is amended to
8 read:

9 41-1731. Peace officer training equipment fund; exemptions

10 A. The peace officer training equipment fund is established
11 consisting of monies deposited pursuant to sections 12-114[,] [~~and~~]
12 12-116.10 [AND 28-1602]. The state treasurer shall administer the fund.
13 Monies in the fund may be used only for peace officer equipment.

14 B. The state treasurer shall invest and divest monies in the fund
15 as provided by section 35-313, and monies earned from investment shall be
16 credited to the fund.

17 C. Monies in the fund:

18 1. Do not revert to the state general fund at the end of the fiscal
19 year.

20 2. Are exempt from the provisions of section 35-190 relating to
21 lapsing of appropriations.

22 3. Are subject to legislative appropriation.>>

23 Enroll and engross to conform

24 Amend title to conform

And, as so amended, it do pass

LEO BIASIUCCI
CHAIRMAN

1624TRANSPORTATION INFRASTRUCTURE.docx

03/18/2026

03:56 PM

C: JR

130AZRSYW